

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR ENGROSSED
6 SENATE BILL NO. 1521

By: Hamilton of the Senate

and

Maynard of the House

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10 COMMITTEE SUBSTITUTE

11 An Act relating to artificial intelligence; defining
12 terms; requiring operators make certain disclosure;
13 directing operators to institute certain preventative
14 measures for minor account holders; prohibiting
15 operators from allowing a conversational AI service
16 to make certain statement; requiring operators to
17 adopt certain protocol to respond to certain prompts
18 from users; granting enforcement authority to the
19 Attorney General; establishing certain civil penalty;
20 allowing the Attorney General to promulgate rules for
21 the enforcement of this act; providing for
22 codification; and providing an effective date.

23 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

24 SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 301 of Title 75A, unless there
is created a duplication in numbering, reads as follows:

As used in this act:

1 1. "Account holder" means an individual who has an account or
2 profile to use a conversational AI service;

3 2. "App" means a software application or electronic service
4 that a user may run or direct on a mobile device, including
5 preinstalled applications;

6 3. "App store" means a publicly available website, software
7 application, or electronic service that allows account holders to
8 download apps from third-party developers onto a mobile device;

9 4. "App store provider" means a person who owns, operates, or
10 controls an app store that allows individuals in this state to
11 download apps onto a mobile device;

12 5. "Conversational AI service" means a generative artificial
13 intelligence system offered as a software application, web
14 interface, or computer program that is accessible to the general
15 public and that is marketed or optimized to meet a user's emotional
16 or social needs by simulating interpersonal companionship, emotional
17 attachment, or romantic human conversation and interaction through
18 sustained textual, visual, or aural communication. Such term shall
19 not include an application, web interface, or computer program that:

20 a. is primarily designed and marketed for use by
21 developers or researchers,

22 b. is a feature within another software application, web
23 interface, or computer program that is not a
24 conversational AI service, such as a video game,

1 c. is designed to provide outputs relating to a narrow
2 and discrete topic,

3 d. is primarily designed and marketed for commercial use
4 by business entities, including for purposes related
5 to customer service, a business's operation purposes,
6 product information and discovery, managing existing
7 services or goods purchased from the business,
8 scheduling, billing and payment, productivity and
9 analysis related to source information, internal
10 research, or technical assistance,

11 e. functions as a text, voice, or voice-activated virtual
12 assistant or command interface for a consumer
13 electronic device, or

14 f. is used by a business solely for internal purposes;

15 6. "Generative artificial intelligence system" means a
16 computer-based system that uses machine learning or similar
17 techniques involving large language models or deep learning models
18 trained on one or more datasets and that is intended to generate,
19 with some degree of autonomy, synthetic content, including, but not
20 limited to, images, videos, audio, text, and other digital content,
21 that emulates the structure and characteristics of such datasets;

22 7. "Minor account" means an account which has a known minor
23 account holder;

1 8. "Operator" means a person who owns, controls, and makes
2 available a conversational AI service to the public. The term shall
3 not include, an Internet service provider, an app store provider or
4 search engine solely because the app store provider or search engine
5 provides access to a conversational AI service; and

6 9. "Sexually explicit conduct" has the same meaning as defined
7 in subsection C of Section 1024.1 of Title 21 of the Oklahoma
8 Statutes.

9 SECTION 2. NEW LAW A new section of law to be codified
10 in the Oklahoma Statutes as Section 302 of Title 75A, unless there
11 is created a duplication in numbering, reads as follows:

12 A. An operator shall clearly and conspicuously disclose to a
13 minor account holder that he or she is interacting with a
14 conversational AI service and is not interacting with a natural
15 person:

16 1. With a constantly visible disclaimer; or

17 2. At the beginning of each session and appearing at least
18 every thirty (30) minutes in a continuous conversational AI service
19 interaction.

20 B. For minor account holders, an operator shall institute
21 reasonable measures to prevent the conversational AI service from
22 generating statements that would lead a reasonable person to believe
23 that he or she is interacting with a natural person, including:
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1 1. Explicit claims that the conversational AI service is
2 sentient or human;

3 2. Statements that simulate emotional dependence;

4 3. Statements that simulate romantic or sexual innuendos; or

5 4. Role-playing of adult-minor romantic relationships.

6 C. 1. An operator shall not provide a minor account holder
7 with points or similar rewards at unpredictable intervals with the
8 intent to encourage increased engagement with the conversational AI
9 service.

10 2. An operator shall offer tools for a minor account holder's
11 parent or legal guardian to manage the minor account holder's
12 privacy and account settings.

13 D. An operator shall not knowingly or intentionally cause or
14 program a conversational AI service to make any representation or
15 statement that explicitly indicates that the conversational AI
16 service is designed to provide professional mental or behavioral
17 health care.

18 E. An operator shall adopt a protocol for the conversational AI
19 service to respond to a user prompt regarding suicidal ideation or
20 self-harm, which shall include making reasonable efforts to provide
21 a response that refers the user to crisis service providers.

22 SECTION 3. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 303 of Title 75A, unless there
24 is created a duplication in numbering, reads as follows:

1 A. In the case of a violation of Section 2 of this act, the
2 Attorney General may bring a civil action in the district court of
3 Oklahoma County or a district court in the county in which the
4 violation occurred to obtain civil penalties under subsection B of
5 this section.

6 B. Any operator who violates the provisions of this act shall
7 be subject to a civil penalty of One Thousand Dollars (\$1,000.00)
8 per violation not to exceed Five Hundred Thousand Dollars
9 (\$500,000.00) per covered entity.

10 C. The Attorney General may promulgate any rules necessary to
11 enforce the provisions of this act.

12 D. Nothing in this act shall be construed to create liability
13 for the developer of a conversational AI which is made available to
14 the public by a separate operator.

15 SECTION 4. This act shall become effective July 1, 2027.

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17 COMMITTEE REPORT BY: COMMITTEE ON COMMERCE AND ECONOMIC DEVELOPMENT
18 OVERSIGHT, dated 04/15/2026 - DO PASS, As Amended.